

TENTATIVE RULING

Case: Jane Doe #1 v. DeLuca et al.
Case No. CV2026-0950

Hearing Date: August 18, 2026 **Department Fourteen** **9:00 a.m.**

Defendants Rocko DeLuca (“DeLuca”) and Heather Hunter (“Hunter”) (collectively, “defendants”) request for judicial notice is **DENIED**. (Evid. Code, §§ 452, subds. (d), 453.) The documents are not relevant to the Court’s determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Plaintiff Jane Doe #1’s request for judicial notice ISO opposition is **DENIED**. (Evid. Code, §§ 452, subds. (c), (h), 453.) The Court finds that these requests do not fall within either Evidence Code section 452(c) or (h).

The Court rules on defendants’ demurrers to plaintiff’s complaint as follows:

- Defendants’ demurrer as to all causes of action based on the sham pleading doctrine is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that the sham pleading doctrine does not apply to bar plaintiff’s claims in this matter. (*Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 447; *Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 343-344.)
- Defendants’ demurrer to first, second, third, sixth, and seventh causes of action for intentional misrepresentation (fraud), fraudulent concealment, negligent misrepresentation, intentional infliction of emotional distress, and violation of California Unfair Competition Law is **SUSTAINED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e); *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.) The Court finds that these causes of action are barred by Government Code section 820.2. (Govt. Code, § 820.2; *Caldwell v. Montoya* (1995) 10 Cal.4th 972, 979-982; (*Greenwood v. City of Los Angeles* (2023) 89 Cal.App.5th 851, 860; Complaint, ¶¶ 1, 4, 17-19, 21-22, 73-79, 81.) Specifically, The Court finds that on its face, plaintiff’s complaint challenges discretionary planning and policy-making decisions, not simply “ministerial” actions implementing a “policy already formulated.” (*Greenwood, supra*, 89 Cal.App.5th at p. 860.)
- Defendants’ demurrer to the fourth and fifth causes of action for breach of contract and breach of implied covenant of good faith and fair dealing is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that plaintiff fails to allege facts sufficient to support the requisite elements for a cause of action based upon breach of contract or breach of implied covenant of good faith and fair dealing. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821; *Lortz v. Connell* (1969) 273 Cal.App.2d 286, 290; See also *Regan Roofing Co. v. Superior Court* (1994) 24 Cal.App.4th 425, 434 – 435; *Digerati Holdings, LLC v. Young Money Ent., LLC* (2011) 194 Cal.App.4th 873, 885; *Carma Developers (Cal.), Inc. v. Marathon*

Development California, Inc. (1992) 2 Cal.4th 342, 371; Complaint ¶¶ 156-164, 168-170.) The Court further finds that plaintiff has not shown how the defects of these causes of action can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Cooper v. Leslie Salt Co.* (1969) 70 Cal.2d 627, 636 [“[t]he burden of proving such reasonable possibility is squarely on the plaintiff”]; *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081 [“plaintiff has the burden of proving that an amendment would cure the defect”].)

Plaintiff may amend her complaint by no later than **August 28, 2026** (10 days after the hearing). (Cal. Rules of Court, rule 3.1320(g).)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Garcia v. Penske Truck Leasing Co., L.P.**
 Case No. CV2024-1405

Hearing Date: **August 18, 2026** **Department Thirteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR** for a hearing on plaintiff Jamie Garcia's motion for final approval of class action and PAGA settlement. (Cal. Rules of Court, rule 3.769(f), (h).)
Plaintiffs should be prepared to argue the merits of the lodestar multiplier of 2.83.